



Equipment Lease Agreement

This lease is made and effective between Engineering Surveys Pty Ltd (Lessor) and the Lessee named below.

Lease Summary

Contact Person	David	Company / Entity or Project	Mitcon Formwork
Contact Number	0426493212		
Address	4/11 Ridley St, Hindmarsh SA 5007, Australia		
Start Date	18 March 2026	Start Time	09:00
Lease Duration	9 days	Return Date	26 March 2026
Daily Hire Rate	\$50 per day	Agreement Date	02 April 2026

Equipment Details

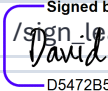
Equipment / Accessories	37011807
Serial Number(s)	37011807
Return Condition	Equipment must be returned in the same condition in which it was provided, subject to fair wear and tear only.

Insurance and Responsibility

The Lessee agrees that the equipment must be insured under the Lessee's personal or company insurance policy during the lease period. Any loss of, or damage to, the equipment remains the responsibility of the Lessee.

Acceptance and Signatures

This contract is accepted by Engineering Surveys on 02 April 2026.

Lessee	David	Lessor	Engineering Surveys
Signature	Signed by: /s/ sign lease/  D5472B5DDDEEB47C...	Signature	
Name / Company	Mitcon Formwork	Name / Company	Engineering Surveys
Date		Date	02 April 2026

Disclaimer of Liability and Additional Terms

- 1.** Engineering Surveys Pty Ltd, its affiliates, and its employees expressly disclaim all liability to any person for anything done or omitted to be done in whole or in part in reliance on any information accessed through the use of this equipment.
- 2.** The materials provided by Engineering Surveys are provided “as is”. To the maximum extent permitted by law, Engineering Surveys makes no representations or warranties of any kind, whether express or implied, including, without limitation, warranties of merchantability, fitness for a particular purpose, or non-infringement of intellectual property. Engineering Surveys does not warrant the accuracy or completeness of information accessed through use of this equipment.
- 3.** To the maximum extent permitted by law, Engineering Surveys and its affiliates will not be liable for any damages whatsoever, including without limitation direct, indirect, punitive, special, or consequential damages, lost profits, lost data, or business interruption, arising out of the use, inability to use, or results of use of this equipment, whether based on contract, tort, statute, common law, equity, or any other legal theory, and whether or not advised of the possibility of such damages. If circumstances arise where you are entitled to claim damages from Engineering Surveys notwithstanding these terms, our aggregate liability to you is limited, at our election, to the re-supply of the services or the cost of re-supplying the services.
- 4.** If any provision of these terms is unlawful, void, or unenforceable for any reason, that provision will be deemed severed and will not affect the validity and enforceability of the remaining provisions.
- 5.** Engineering Surveys may revise these terms at any time by updating this disclaimer. You are bound by such revisions and should therefore review this document regularly.
- 6.** “Lessor” means Engineering Surveys Pty Ltd trading as Engineering Surveys of 4/11 Ridley Street, Hindmarsh SA 5007.
- 7.** “Equipment” means any equipment rented under this agreement and includes all accessories either fitted to or supplied with the equipment.
- 8.** “Lessee” means the person and/or company signing this agreement, or on whose behalf this agreement is signed, and who declares that all information provided is true and accurate.
- 9.** The renter must not permit the equipment to be used by any person other than the renter or the renter’s nominated persons.
- 10.** In the event of loss of or damage to the equipment, or any incident that may give rise to a claim by any person against the owner or operator for injuries or property damage, the renter must notify the owner immediately and confirm that notification in writing with full details as soon as practicable. The renter must comply with, and assist the owner to comply with, all requirements of the owner’s insurer relating to any such claim.
- 11.** The renter must pay to the owner any total cost of recovery, cleaning, repair, or damage arising from wilful misuse of the equipment.
- 12.** The renter must also pay any expenses, including legal expenses, incurred by the owner or its agent in repossessing, or attempting to repossess, the equipment, accessories, or outstanding monies.
- 13.** The renter undertakes that the equipment will be returned to the owner at the place from which it was rented, in the same condition as received, no later than the nominated date and time. The late return fee is one-fifth of the daily rate per hour.
- 14.** Loss of or damage to the equipment does not invalidate the lease agreement.
- 15.** Any amount for which the renter is liable under this agreement may be deducted from the security bond by the owner. Any amount greater than the security bond remains recoverable from the renter, who is personally liable for that amount in addition to the security bond.
- 16.** The renter must not allow the equipment to be repaired without the owner’s approval, create a lien over the equipment, or part with possession of the equipment.
- 17.** Where there is more than one renter, each renter is jointly and severally liable for the amounts due under this agreement.
- 18.** The owner is not liable for any loss or damage arising through breakdown, mechanical defect, accident, or any consequential loss or damage whatsoever.
- 19.** The owner is not liable to any person whatsoever for any loss of or damage to property. The renter indemnifies the owner against any such claims.
- 20.** Insurance for theft, damage, or accidental damage to the equipment is the responsibility of the renter.
- 21.** The equipment is, and will at all times remain, the sole and exclusive property of the Lessor. The Lessee has no right, title, or interest in the equipment except as expressly set out in this lease. The agreement cannot be changed after it is signed.